

Shalini Vinesh Gayakwad vs Vinesh Tippaya Gayakwad on 14 December, 2022

Author: Avinash G Gharote

Bench: Avinash G. Gharote

mca 426.21.

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH, NAGPUR

Misc Civil Application No.426/2021
Shalini V Vinesh

Office notes, Office Memoranda of
Coram, appearances, Court's orders
or directions and Registrar's orders. Court's or Judge's Orders

Mr. J.B. Gandhi, Adv. for applicant.

CORAM : AVINASH G GHAROTE, J.

DATE : 14-12-2022 Though the non-applicant is served, none appears. The application seeks transfer of Petition A- 438/2020, filed by the respondent/husband before the Family Court-4 Mumbai at Bandra under Section 13(1) (i-a) of the Hindu Marriage Act to the Family Court at Akola, on the ground that the applicant/wife is permanent resident of Murtizapur and is unable to approach the Court at Bandra for prosecuting the matter. Considering what has been held in D. Raja Rajeswari Vs Satish Kumar (2022) 2 SCC 329, this application is allowed.

2. In case there is Video Conferencing facilities available with the Court at Bandra, any application filed by the non-applicant for appearing in the proceedings through video conferencing shall be taken into consideration, unless the personal physical presence is desired by the Court.

3. The applicant shall place a copy of this order before the Family Court-4, Mumbai at Bandra on 05-01-2023 to apprise him of the same and enable him to transfer the record to the Family Court at Akola.

4. The parties shall put an appearance before the Family Court at Akola on 12-01-2023.

5. Application is allowed in the above terms. No costs.

JUDGE Deshmukh